

CITATION: Papapetrou v. 1054422 Ontario Limited, 2011 ONSC 4731
COURT FILE NO.: C-1243-06
DATE: 2011-08-08

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

MARIA PAPAPETROU

Plaintiff

- and -

1054422 ONTARIO LIMITED, THE CORA
GROUP INC., and COLLINGWOOD
LANDSCAPE INC.

Defendants

)
)
) No one appearing
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) Nancy Crespo, for the Moving Defendants,
) 1054422 Ontario Limited and The Cora
) Group Inc.
) Stephen Brogden, for the Responding
) Defendant, Collingwood Landscape Inc.
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) **HEARD:** December 3, 2010 in Kitchener

MILANETTI J.

[1] The defendant owners of a building (1054422 Ontario Limited and The Cora Group Inc.) bring this motion for summary judgment as against the snow removal contractors, Collingwood Landscape Inc., that they hired to provide winter maintenance for their building. Each of the parties involved in this motion are named as defendants in an action by the plaintiff arising from injuries she says she sustained in a slip and fall on the defendant Cora's premises on December

7th, 2004. The fall occurred on the front stairs to the premises; said to be the result of black ice thereon.

[2] The motion asks that I dismiss the claims as against 1054422 Ontario Limited/The Cora Group Inc. or in the alternative that the defendant, Collingwood, assume their defence.

[3] The plaintiff did not appear. I was told they were taking no position. This is relevant, in my view, given that the primary request is for dismissal of the claim as against the defendant property owners.

[4] I was directed to the wording of the service contract between the owners and the snow removal company. That contract was in force at the relevant time. It required the snow removal contractor to maintain a CGL policy with minimum limits of \$2,000,000. It also required them to name the owners (1054422 Ontario Limited and The Cora Group Inc.) as additional insureds under the policy. It would appear that the policy obtained (for snow removal, plowing and clearing) complies with neither of those contractual requirements. The owners are not named and it is for \$1,000,000 not \$2,000,000.

[5] Section 8 of the Service Contract states that:

The Contractor assumes sole responsibility for all persons engaged or employed in respect of the Work and shall take all reasonable and necessary precautions to protect persons and property from injury or damage. The Owner shall not be responsible in any way for any injury to or the death of the Contractor's employee', agents or subcontractors or to any other person or for any loss of, or damage to, any property in any way resulting from any act or omission of the Contractor or the employees, agents or sub-contractors of the Contractor, including loss of business or profits. The Contractor shall indemnify and save harmless the Owner,

their directors, employees, agents and representatives against all claims, losses, liabilities, demands, suits and expenses from whatever source, nature and kind in any manner based upon, incidental to or arising out of the performance or non-performance of the contract by the Contractor or any of its employees, agents and representatives.

[6] The contract also sets out the snow removal specifications in detailed fashion at Schedule A. The objectives of Schedule A state that, “The Contractor [is] to be responsible for all winter maintenance...on the Site.” It includes all pedestrian areas and stairs. Both snow and ice are addressed in quite precise detail.

[7] I am asked to decide first that there is no genuine issue requiring a trial as between these defendants and indeed between the moving defendant owners and the plaintiffs themselves.

[8] The moving parties (1054422 Ontario Limited and The Cora Group) state that the contract makes it clear that the snow removal contractor bears complete responsibility for any/all injuries as the result of their winter maintenance, or alleged lack thereof. The responding party (Collingwood Landscape Inc.) states that such is not clear given the fact that the statement of claim makes allegations against the owners for a breach of their responsibilities as occupiers apart from allegations relative to the icy stairs. A review of the statement of claim, most particularly paragraph 8 thereof reveals the following allegations:

- (a) they failed to take any or adequate measures to make the premises safe for Maria;
- (b) they exposed Maria to risk of injury from the build up of ice that covered the steps which they knew or ought to have known was dangerous;
- (c) they permitted the steps to remain in an unsafe and dangerous condition by failing to remove the ice, thereby creating a concealed danger;

- (d) they failed to take any or adequate measures to remove the ice from the steps by applying salt, sand or any form of melting chemical;
- (e) they failed to give Maria sufficient warning of the state and condition of the ice that accumulated on the steps;
- (f) they exposed Maria to a risk of injury by permitting ice to remain on the steps;
- (g) they knew or ought to have known that ice on the steps constituted a hazard and a danger to users such as Maria;
- (h) they failed to give Maria sufficient warning that the steps were to be avoided because of the ice that had formed and accumulated on them;
- (i) they did not properly inspect or maintain the premises including the steps;
- (j) they permitted on the premises, and especially the steps, to remain in an unsafe and dangerous condition;
- (k) they permitted a danger to exist by not taking any or adequate steps to prevent ice from forming and accumulating on the steps when they knew or ought to have known that if ice accumulated on the steps they would become slippery for its users such as Maria;
- (l) they failed to have a regular system of inspection and maintenance for the premises, including the steps;
- (m) they failed to provide any sign or warning of unusual danger;
- (n) they failed to ensure that their employees, agents and servants carried out their responsibilities to provide for the safety of Maria and other persons of the premises, including the steps;
- (o) they failed to ensure that their employees, agents and servants had the required training, skill and knowledge to inspect and maintain the premises, including the steps.

[9] As such, there are some allegations that fall within the general occupiers' liability basket. They are not however, of the nature of the quite pointed allegations in the *Cadillac Fairview v. Olympic Sanitation Products Inc. (c.o.b.) Cleana Facility Service*, [2010] O.J. No. 3306 at para. 30 (Ont. S.C.J.) case or the *Atlific Hotels & Resorts Ltd. v. Aviva Insurance Co. of Canada*, 2009 CarswellOnt 2697 (Ont. S.C.J.), both of which were referred to me. Rather, it is apparent that

the more general allegations still tie into the essential negligence alleged – the defendant’s failure to address icy conditions on the pedestrian stairway leading into the building.

[10] The pleadings as framed, thus are more closely aligned with those before Justice Hennessey in the *Riocan Real Estate Investment Trust v. Lombard General Insurance Company Co.*, 2008 CanLII 16073 (ON S.C.) case. In that case she looked at the pleadings and found that, “the true nature of the claim” or the “essence of the action” fell within the coverage available. Justice Belobaba did a thorough review of the law in his *Atlific Hotels* decision, *supra*, and points out the decision of the Supreme Court of Canada in *Non-Marine Underwriters, Lloyd’s of London v. Scalera*, (2000) 1 S.C.R. 551 (SCC) which states:

“In determining if a claim falls within coverage, courts are not bound by the labels chosen by the plaintiff, but must determine the true nature of the claim stated in the pleadings.”

[11] In the case before me, the contract specifically sets out the contractor’s responsibility; says they will “assume sole responsibility...to protect persons and property from injury and damage. It goes on to say that the contractor will indemnify and save harmless the owner...against all claims...arising out of the performance or non-performance of the contract by the contractor...”

[12] Upon review of the pleadings and the case at bar, I find, like Justice Hennessey in *Riocan*, *supra*, that “the true nature of the claim is that the defendants were negligent in failing to maintain an ice free pedestrian stairway, and as a result the plaintiff fell and sustained injury. This position is reinforced by the non-attendance/no position taken, by the plaintiffs themselves.

Surely, if they were pursuing discreet claims as against the property owners (aside from the ice) they would have been more actively involved. They were not.

[13] As a result, based on the contract, and the context of the pleadings framing the action, the snow removal contractor is obligated to defend and indemnify the property owners. This remains the case despite the fact that the contractor failed to name the property owner as an insured contrary to the contract between the parties. They should not escape responsibility to defend/indemnify merely because they failed to meet their contractual responsibility.

[14] As such, I would order that the defendant Collingwood assume the defence of 1054422 Ontario Limited, and The Cora Group Inc. and indemnify them for any damages awarded to the plaintiff. It would appear that costs should follow the event and I will be prepared to receive costs submissions from each of the parties within 15 days of the receipt of this decision if the parties are unable to resolve the costs themselves. Cost submissions should be limited to two pages per party.

Milanetti J.

Released: August 8, 2011

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Plaintiff

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Defendants

REASONS FOR JUDGMENT

Milanetti J.

JAM:mg

Released: August 8, 2011